



New South Wales

Justice Legislation Amendment (Miscellaneous) Bill (No 2) 2026

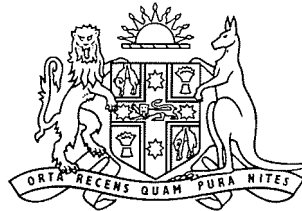
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I certify that this public bill, which originated in the Legislative Assembly, has finally passed the Legislative Council and the Legislative Assembly of New South Wales.

*Clerk of the Legislative Assembly.
Legislative Assembly,
Sydney,*

, 2026



New South Wales

Justice Legislation Amendment (Miscellaneous) Bill (No 2) 2026

Act No , 2026

An Act to amend various Acts relating to courts, crimes and other Communities and Justice portfolio matters.

I have examined this bill and find it to correspond in all respects with the bill as finally passed by both Houses.

Assistant Speaker of the Legislative Assembly.

The Legislature of New South Wales enacts—

1 Name of Act

This Act is the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026*.

2 Commencement

This Act commences as follows—

- (a) for Schedule 1.5 and 1.22—on 1 December 2026,
- (b) for Schedule 1.1[1], [3]–[13] and [16], 1.3, 1.4[1]–[3] and [9], 1.8[1], [2] and [4] and 1.17[6]—on a day or days to be appointed by proclamation,
- (c) otherwise—on the date of assent to this Act.

3 Explanatory notes

An explanatory note in a schedule of this Act does not form part of this Act.

Schedule 1 Amendment of Acts

1.1 Bail Act 2013 No 26

[1] Section 4 Definitions

Insert in alphabetical order in section 4(1)—

residential rehabilitation acknowledgment—see section 28C(2)(c).

residential rehabilitation facility means a facility at which a residential rehabilitation program to treat dependency on alcohol or drugs, or both, is provided in a residential community setting.

residential rehabilitation program means a program of care and support to treat dependency on alcohol or drugs, or both, that—

- (a) is delivered in a residential setting that provides a range of support services, such as individual and group counselling, physical health and wellbeing, and education and skills training, and
- (b) does not include the following—
 - (i) treatment on an outpatient or drop-in basis,
 - (ii) detoxification and withdrawal management, such as the short-term medical and psychological care of a person experiencing withdrawal symptoms as a result of stopping or reducing use of alcohol or drugs, or both, whether or not in a residential setting.

residential rehabilitation requirement—see section 28C(1).

[2] Section 22C Temporary limitation on bail for certain young persons in relation to certain serious offences

Omit “1 October 2026” from section 22C(5).

Insert instead “4 April 2028”.

[3] Section 25 Bail conditions can impose conduct requirements

Insert after section 25(3)—

- (4) A conduct requirement must not require an accused person to reside at a residential rehabilitation facility for a residential rehabilitation program.

Note— A requirement that an accused person reside at a residential rehabilitation facility for a residential rehabilitation program is a residential rehabilitation requirement and is made under and subject to section 28C.

[4] Section 28 Bail condition can impose accommodation requirements

Omit section 28(3)(a1).

[5] Section 28(5A)

Insert after section 28(5)—

- (5A) An accommodation requirement must not require an accused person to reside at a residential rehabilitation facility for a residential rehabilitation program.

[6] Section 28, note

Omit the note.

Insert instead—

Note 1— The court may also impose a bail condition (conduct requirements) requiring the accused person to reside at the relevant accommodation while at liberty on bail.

Note 2— A requirement that an accused person reside at a residential rehabilitation facility for a residential rehabilitation program is a residential rehabilitation requirement and is made under and subject to section 28C.

[7] Section 28C

Insert after section 28B—

28C Bail condition may impose residential rehabilitation requirements

- (1) A bail condition imposed by a bail authority on the grant of bail may include a requirement (a ***residential rehabilitation requirement***) that the accused person reside at a residential rehabilitation facility for a residential rehabilitation program while at liberty on bail.

Note— The bail authority may also impose a bail condition (conduct requirements) requiring the accused person to attend and participate in a residential rehabilitation program while at liberty on bail.

- (2) A bail authority must not impose a residential rehabilitation requirement unless—
- (a) the bail authority is satisfied—
 - (i) the residential rehabilitation facility is accredited in accordance with an accreditation standard set out in the National Quality Framework, or
 - (ii) if the residential rehabilitation facility is not accredited in accordance with an accreditation standard set out in the National Quality Framework—the facility is otherwise appropriate in all the circumstances, and
 - (b) the bail authority is satisfied the residential rehabilitation facility has a policy in place that provides the facility will, as soon as practicable, report to a police officer if one of the following occurs—
 - (i) an accused person absconds or is otherwise absent from the facility without permission in contravention of the person's bail conditions,
 - (ii) the early termination of an accused person's participation in the residential rehabilitation program, including termination by an accused person or an accused person being expelled from the facility, for example, due to a contravention of facility rules or requirements,
 - (iii) another occurrence prescribed by the regulations, and
 - (c) the bail authority has been given a written acknowledgment (a ***residential rehabilitation acknowledgment***) by an appropriate representative for the residential rehabilitation facility that sets out the following—
 - (i) the name and role of the appropriate representative,
 - (ii) that the facility has the policy referred to in paragraph (b) in place and the facility operates in accordance with the policy,
 - (iii) other matters prescribed by the regulations, and
 - (d) the bail authority has considered the following information about the residential rehabilitation facility prepared by an appropriate representative for the residential rehabilitation facility—

- (i) that a place for the accused person at the residential rehabilitation facility is immediately available or that the facility estimates to have a place or places available on a specified date or dates,
 - (ii) information about the following—
 - (A) the level of security and supervision at the facility, including the hours of staffing and the level of supervision given to accused persons at the facility,
 - (B) the restrictions imposed on accused persons at the facility, including prohibitions against the possession or use of alcohol or drugs at the facility,
 - (C) the health and other therapeutic services that will be provided to the accused person,
 - (iii) other information of a kind prescribed by the regulations.
- (3) The regulations may make further provision for residential rehabilitation requirements.
- (4) In this section—

appropriate representative, of a residential rehabilitation facility, means a director, secretary or officer of a corporation or organisation that operates the facility, or a person engaged or employed by the person that operates the facility, who is appropriate to carry out the functions under this section in the opinion of—

 - (a) the bail authority imposing the bail condition, or
 - (b) the officer or court to whom the residential rehabilitation acknowledgment is given, if no opinion has been formed under paragraph (a).

National Quality Framework means—

- (a) the document entitled *National Quality Framework for Drug and Alcohol Treatment Services* published by the Department of Health of the Commonwealth in 2018, or
- (b) a document, prescribed by the regulations, that replaces that document.

Note— The *National Quality Framework for Drug and Alcohol Treatment Services* contains a list of accreditation standards for drug and alcohol treatment services.

[8] Section 29 Limitation on power to impose pre-release requirements

Insert after section 29(1)(d)—

- (d1) a residential rehabilitation requirement,

[9] Section 29(3)

Insert “, an accompaniment requirement or a residential rehabilitation requirement” after “accommodation requirement”.

[10] Section 29(4AA)

Insert after section 29(4)—

- (4AA) A residential rehabilitation requirement is complied with when the following person is given written notice by an employee of the operator of the relevant residential rehabilitation facility that a suitable place at the facility is immediately available for the accused person—
 - (a) for an accused person who is a child—the Secretary of the Department of Communities and Justice,

- (b) otherwise—the Commissioner of Corrective Services.

[11] Section 29(6)

Omit the subsection.

Insert instead—

- (6) In this section—

appropriate Government representative means—

- (a) the Secretary of the Department of Communities and Justice or a delegate of the Secretary, or
(b) another person prescribed by the regulations.

[12] Section 37A

Insert after section 37—

37A Information to be provided about residential rehabilitation acknowledgements

- (1) A bail authority must ensure a person who gives a residential rehabilitation acknowledgment is given a written notice setting out the terms of the bail condition under which the acknowledgment is required.
- (2) A bail authority that varies a bail condition that requires a residential rehabilitation acknowledgment to be given must ensure a person who gives a residential rehabilitation acknowledgment in compliance with the bail condition is given a written notice setting out the terms of the condition as varied.

[13] Section 52 Powers of authorised justices to vary court decisions

Insert after section 52(2)—

- (2A) Despite subsection (2)(b), a residence condition that requires the person granted bail to reside at a residential rehabilitation facility is not reviewable by an authorised justice under this section.

[14] Section 66 Powers specific to Supreme Court

Omit “or a police officer” from section 66(1).

Insert instead “or, with the leave of the Supreme Court, a police officer”.

[15] Section 66(2)

Omit the subsection.

Insert instead—

- (2) The Supreme Court may hear a detention application or variation application for an offence if a bail decision has been made by—
- (a) the District Court, or
(b) the Local Court, or
(c) a police officer, but only with the leave of the Supreme Court.

[16] Schedule 3 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Provisions consequent on enactment of Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026

1 Definitions

In this part—

commencement date means the date of the commencement of the relevant amendments.

relevant amendments means the amendments made by the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026*, Schedule 1.1[1] and [3]–[13].

2 Application of amendments

- (1) A relevant amendment extends to offences committed, alleged to have been committed or charged before the commencement date.
- (2) To avoid doubt, after the commencement date, a variation to a bail decision made before the commencement date may impose a residential rehabilitation requirement.

3 Review of operations of relevant amendments

- (1) The Minister must review the operation of the relevant amendments to determine whether—
 - (a) the policy objectives of the amendments remain valid, and
 - (b) the terms of the amendments remain appropriate for achieving the objectives.
- (2) The review must be undertaken as soon as practicable after the period of 3 years from the commencement date.
- (3) A report on the outcome of the review must be tabled in each House of Parliament as soon as practicable after the end of the review period.
- (4) In this clause—

review period means the period ending on the day that is 12 months after the day on which the review starts.

1.2 Child Protection (Offenders Registration) Act 2000 No 42

[1] Schedule 1A Class 1 offences

Omit “self-manipulation” from Part 1, item 22.

Insert instead “self-penetration”.

1.3 Children (Community Service Orders) Act 1987 No 56

[1] Section 22 Revocation of children’s community service orders on being dealt with for other offences

Insert “, of the court’s own motion,” after “may” in section 22(1).

1.4 Children (Criminal Proceedings) Act 1987 No 55

[1] Section 3 Definitions

Insert in alphabetical order in section 3(1)—

member, of the NSW Police Force, has the same meaning as in the *Police Act 1990*, section 5.

[2] Section 13

Omit the section.

Insert instead—

13 Admissibility of statements, confessions, admissions and information

- (1) This section applies to a statement made, or information given, to a member of the NSW Police Force by a child.
- (2) Unless a support person for the child was present while the statement was made or the information was given, the statement or information must not be admitted in evidence in criminal proceedings to which the child is a party, including proceedings brought after the child turns 18 years of age.
- (3) Subsection (2) does not apply if the person determining the admissibility of the evidence is satisfied—
 - (a) there was proper and sufficient reason for the absence of the support person, and
 - (b) it is appropriate in the circumstances to admit the statement or information in evidence.
- (4) Subsection (2) does not apply if a law required the child to make the statement or give the information.
- (5) In this section—

statement includes a confession and an admission.

support person, for a child making a statement or giving information, means—

 - (a) if the child is less than 14 years of age—
 - (i) an adult who is a person responsible for the child, or
 - (ii) an adult, other than a member of the NSW Police Force, who has the consent of a person responsible for the child to be present while the child makes the statement or gives the information, or
 - (iii) an Australian legal practitioner chosen by the child, or
 - (b) if the child is at least 14 years of age—a person who has the child's consent to be present while the child makes the statement or gives the information and who is—
 - (i) a person described in paragraph (a), or
 - (ii) another adult who is not a member of the NSW Police Force.

[3] Section 13A

Insert after section 13—

13A Evidence relating to intervention programs not admissible

- (1) A statement, information or document made or given for the purpose of, or in the course of, a child participating in an intervention program is not admissible in evidence in civil or criminal proceedings to which the child is a party.
- (2) For subsection (1), a child's participation in an intervention program includes the assessment of the child for participation in the program, whether or not—
 - (a) the child is participating in a program for the first time, or

- (b) the child declines or is not accepted into the program.
- (3) Subsection (1) does not apply to a statement, information or document relating to an offence committed or allegedly committed against a person who provides an intervention program by a child participating in the intervention program.
- (4) Subsection (1) does not apply if—
 - (a) the child the subject of a statement, information or document requests leave of the court to adduce the statement, information or document in a proceeding, and
 - (b) the court gives leave for the statement, information or document to be adduced, and
 - (c) the statement, information or document is admitted into evidence.
- (5) If a statement, information or document is admitted into evidence under subsection (4), a statement, information or document made or given for the purpose of, or in the course of, the child participating in an intervention program is admissible in evidence in the proceedings to which subsection (4) applies.
- (6) Subsection (5) does not apply to subsequent proceedings if a statement, information or document is admitted into evidence in proceedings under the *Bail Act 2013*.
- (7) Subsection (1) applies to proceedings under the *Bail Act 2013*, despite that Act, section 31(1).
- (8) Subsection (1) applies to civil and criminal proceedings that are brought after the child turns 18 years of age.
- (9) In this section—
 - intervention program***—
 - (a) means a program for the treatment of children in, or at risk of contact with, the criminal justice system prescribed by the regulations, and
 - (b) includes services relating to the program.
 - statement*** includes a confession and an admission.

[4] Section 31 Hearing of charges in the Children's Court

Insert after section 31(6)—

- (6A) The prosecutor is not required to produce a certificate under subsection (6)(a) if the charge certificate for the proceedings specifies each back up offence and related offence with which the person has been charged.

[5] Section 31(8)

Insert in alphabetical order—

charge certificate has the same meaning as in the *Criminal Procedure Act 1986*.

[6] Section 31AA Application of Division

Omit section 31AA(2).

Insert instead—

- (2) This division extends to the following proceedings—

- (a) proceedings involving more than one complainant, if at least one complainant alleges in the proceedings that the accused person committed a child sexual assault offence against the complainant,
- (b) proceedings in which the accused person is charged before the Children's Court with a child sexual assault offence and one or more other offences, other than a serious children's indictable offence, against the same complainant.

[7] Section 31AA(3), definition of "child sexual assault offence"

Omit the definition.

Insert instead—

child sexual assault offence means a child sexual assault offence within the meaning of the *Criminal Procedure Act 1986*, section 83, other than a serious children's indictable offence, in relation to which 1 or more complainants were less than 18 years of age—

- (a) for an offence committed under the *Crimes Act 1900*, section 73 or 73A—on the date of the alleged offence, or
- (b) otherwise—
 - (i) on the date of the alleged offence, or
 - (ii) at the beginning of the period during which the offence is alleged to have been committed.

[8] Section 33 Penalties

Insert after section 33(1AA)—

- (1AAA) If the Children's Court makes an order under subsection (1)(c2), the Court may adjourn proceedings to a date not later than 12 months after the date specified under subsection (1)(c2) to allow the person to undergo rehabilitation if—
- (a) one of the following circumstances applies—
 - (i) the person has been placed in a rehabilitation program but has not yet completed the program,
 - (ii) the person has not yet been placed in a rehabilitation program but the Court is satisfied all reasonable attempts have been made to place the person in a rehabilitation program, and
 - (b) the Court considers it is in the interests of justice to adjourn the proceedings for the additional period.

[9] Section 41 Enforcement of conditions of good behaviour bond or probation or compliance with outcome plan

Omit "police force" wherever occurring in section 41(1) and (2).

Insert instead "NSW Police Force".

[10] Schedule 2 Savings and transitional provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Provision consequent on enactment of Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026

1 Application of amendments to proceedings

An amendment made to section 31AA by the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026* applies only to proceedings commenced after the commencement of the amendment.

1.5 Court Security Act 2005 No 1

[1] Section 9 Use of recording devices in court premises

Insert after section 9(2)(d)—

- (d1) the use of a recording device by the Sheriff or a sheriff's officer in accordance with the *Sheriff Act 2005*, section 7E,

[2] Section 9A Prohibition on unauthorised transmission of court proceedings from courtroom

Insert after section 9A(2)(e)—

- (e1) the transmission of sounds, images or information obtained by the Sheriff or a sheriff's officer in accordance with the *Sheriff Act 2005*, section 7E,

[3] Section 9B Prohibition on unauthorised distribution of court recording

Insert after section 9B(2)—

- (3) Subsection (1) does not apply to the transmission or distribution of a recording of court proceedings if the recording was obtained by the Sheriff or a sheriff's officer in accordance with the *Sheriff Act 2005*, section 7E.

1.6 Crimes Act 1900 No 40

[1] Part 3, Division 10, Subdivision 14, heading and section 80A, heading

Omit “self-manipulation” wherever occurring.

Insert instead “self-penetration”.

[2] Section 80A(1), definition of “self-manipulation”

Omit the definition.

Insert in alphabetical order—

self-penetration—

- (a) means the penetration, to any extent, of the genitalia or anus of a person by—
 - (i) a part of the body of the person, or
 - (ii) an object manipulated by the person, but
- (b) does not include penetration carried out by the person for proper medical or hygienic purposes.

[3] Section 80A(2)–(3)

Omit “self-manipulation” wherever occurring.

Insert instead “self-penetration”.

[4] Section 80AB Alternative verdicts

Insert after section 80AB(11)—

- (12) If, on the trial of a person for an offence against section 66F(2) or (3), the jury is not satisfied the person is guilty of the offence, but is satisfied the person is guilty of an offence against section 61KC or 61KD(1)—
 - (a) the jury may acquit the person of the offence charged and find the person guilty of an offence against section 61KC or 61KD(1), and
 - (b) the accused is liable to the punishment for the offence against section 61KC or 61KD(1).

[5] Section 80ABA

Insert after section 80AB—

80ABA Alternative verdicts—young person under special care

- (1) If, on the trial of a person for an offence against section 73(1) or (2), the jury is not satisfied the person is guilty of the offence, but is satisfied the person is guilty of an offence against section 73A(1)—
 - (a) the jury may acquit the person of the offence charged and find the person guilty of an offence against section 73A(1), and
 - (b) the accused is liable to the punishment for the offence against section 73A(1).
- (2) If, on the trial of a person for an offence against section 73(1), the jury is not satisfied the person is guilty of the offence, but is satisfied the person is guilty of an offence against section 73(2)—
 - (a) the jury may acquit the person of the offence charged and find the person guilty of an offence against section 73(2), and
 - (b) the accused is liable to the punishment for the offence against section 73(2).

[6] Schedule 11 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

**Part Provision consequent on enactment of Justice
Legislation Amendment (Miscellaneous) Act (No 2)
2026**

1 Application of amendments

- (1) An amendment made to section 80AB by the amending Act applies only in relation to proceedings commenced on or after the commencement of the amendment.
- (2) Section 80ABA, as inserted by the amending Act, applies only in relation to proceedings commenced on or after the commencement of the section.
- (3) In this clause—
amending Act means the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026*.

1.7 Crimes (Appeal and Review) Act 2001 No 120—non-release offenders

[1] Section 3 Definitions

Insert in alphabetical order in section 3(1)—

existing life sentence, for Part 7—see section 74(1).

non-release recommendation, for Part 7—see section 74(1).

non-release sentence, for Part 7 and Schedule 1—see section 74(1).

[2] Section 74 Definitions

Insert in alphabetical order in section 74(1)—

existing life sentence has the same meaning as in the *Crimes (Sentencing Procedure) Act 1999*, Schedule 1.

non-release recommendation has the same meaning as in the *Crimes (Sentencing Procedure) Act 1999*, Schedule 1.

non-release sentence means an existing life sentence the subject of a non-release recommendation.

[3] Section 78 Applications to Supreme Court

Omit “An application” from section 78(1).

Insert instead “Subject to subsection (1A), an application”.

[4] Section 78(1A)

Insert after section 78(1)—

- (1A) An application for an inquiry into a non-release sentence cannot be made under this section.

[5] Section 79 Consideration of applications

Insert after section 79(2)—

- (2A) The Supreme Court cannot—
- (a) consider or otherwise deal with an application referred to in section 78(1A), including by taking an action referred to in subsection (1), or
 - (b) on its own motion, take an action referred to in subsection (1) in relation to a non-release sentence.

[6] Section 82 Action to be taken on completion of inquiry

Omit “The judicial officer” from section 82(2).

Insert instead “Subject to subsection (2A), the judicial officer”.

[7] Section 82(2A)

Insert after section 82(2)—

- (2A) The judicial officer cannot refer the matter to the Court of Criminal Appeal to the extent the matter relates to a non-release sentence.

[8] Section 86 Reference to Court under section 77 (1) (b) or 79 (1) (b) following petition to Governor or application to Supreme Court

Omit “On receiving”.

Insert instead “Subject to subsection (2), on receiving”.

[9] Section 86(2)

Insert at the end of section 86—

- (2) The Court cannot deal with the case to the extent the case—
 - (a) is referred under section 79(1)(b), and
 - (b) relates to a non-release sentence.

[10] Section 88 Reference to Court under section 82 (2) following inquiry

Omit “On receiving” from section 88(2).

Insert instead “Subject to subsection (3), on receiving”.

[11] Section 88(3)

Insert after section 88(2)—

- (3) The Court cannot deal with a matter referred to in subsection (2) to the extent the matter relates to a non-release sentence.

[12] Schedule 1 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

**Part Provision consequent on enactment of Justice
Legislation Amendment (Miscellaneous) Act (No 2)
2026, Schedule 1.7**

1 Non-release sentences

- (1) An amendment made by the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026* extends to—
 - (a) an application under section 78 made, but not determined, before the commencement date, and
 - (b) the referral of a matter relating to a non-release sentence to the Court of Criminal Appeal if the referral relates to an application under section 78 made before the commencement date, and
 - (c) the dealing by the Court of Criminal Appeal with a matter referred to the Court under section 79(1)(b) or 82(2)(b) if the referral relates to an application under section 78 made before the commencement date.
- (2) In this clause—
commencement date means the date on which the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026*, Schedule 1.7 commences.

1.8 Crimes (Appeal and Review) Act 2001 No 120—other amendments

[1] Section 20 Determination of appeals

Insert after section 20(1)(b)—

- (b1) by substituting a verdict of guilty for a lesser offence and varying the sentence accordingly if—
 - (i) the appellant was charged with but not found guilty of the lesser offence in the proceedings under appeal, and
 - (ii) the lesser offence was before the court in the proceedings under appeal at the time the appellant was found guilty, or

[2] Section 20(1A)

Insert after section 20(1)—

- (1A) If the District Court proposes to substitute a verdict under subsection (1)(b1), a party to the proceedings may make submissions in relation to the proposed substitution.

[3] Section 20(3)

Insert after section 20(2)—

- (3) In this section, the power conferred on the District Court to vary a sentence under subsection (2)(b) includes the power—
- (a) to make an order under—
 - (i) the *Mental Health and Cognitive Impairment Forensic Provisions Act 2020*, section 14, or
 - (ii) the *Crimes Act 1914* of the Commonwealth, section 19B or 20BQ, and
 - (b) to set aside a conviction made by the original Local Court, with or without setting aside the finding of guilt on which the conviction is based, to enable the order to be made.

[4] Schedule 1 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Provisions consequent on enactment of Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026, Schedule 1.8

1 Determination of appeals

The insertion of section 20(1)(b1) and (1A) by the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026* applies only in relation to proceedings commenced in the Local Court after the commencement of the provisions.

1.9 Crimes (Sentencing Procedure) Act 1999 No 92

[1] Section 11 Deferral of sentencing for rehabilitation, participation in an intervention program or other purposes

Insert after section 11(2)—

- (2AA) Despite subsection (2), the court may adjourn proceedings to a date not later than 12 months after the date specified under subsection (2) to allow the person to undergo rehabilitation if—
- (a) one of the following circumstances applies—
 - (i) the person has been placed in a rehabilitation program but has not yet completed the program,
 - (ii) the person has not yet been placed in a rehabilitation program but the court is satisfied all reasonable attempts have been made to place the person in a rehabilitation program, and
 - (b) the court considers it is in the interests of justice to adjourn the proceedings for the additional period.

[2] Section 61A

Insert before section 61—

61A Life sentences

- (1) This section applies to a sentence of imprisonment for life for an offence if proceedings for the offence commenced on or after 12 January 1990.
Note— On 12 January 1990, the *Crimes (Life Sentences) Amendment Act 1989* commenced.
- (2) The person subject to the sentence must serve the sentence for the term of the person's natural life.

[3] Schedule 1 Existing life sentences

Insert “or another sentence to which this Act, section 61A applies” after “1985” in clause 1, definition of *existing life sentence*.

1.10 Criminal Procedure Act 1986 No 209

[1] Section 166 Certification and transfer of back up and related offences

Insert after section 166(3)—

- (4) The prosecutor is not required to produce a certificate under subsection (1)(b)(i) if the charge certificate for the proceedings specifies each back up offence and related offence with which the person has been charged.

1.11 District Court Act 1973 No 9

[1] Section 18FAB

Insert after section 18FAA—

18FAB Practice notes

- (1) Subject to the rules, the Chief Judge may publish practice notes relating to the practice and procedure to be followed in the Court.
- (2) A practice note must be published in the Gazette.
- (3) The *Interpretation Act 1987*, sections 40 and 41 apply to a practice note in the same way the sections apply to a statutory rule.
- (4) In this section—
rules means—
 - (a) the civil procedure rules, and
 - (b) the criminal procedure rules.

[2] Section 161 Civil procedure rules

Omit section 161(7) and (8).

[3] Schedule 3 Savings and transitional provisions consequent on amendments to this Act

Insert at the end of the schedule, with appropriate part numbering—

Part Provision consequent on enactment of Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026

1 Application of amendments

A practice note published in the Gazette under section 161(7) before the omission of that subsection by the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026* continues in force as if the practice note was published under section 18FAB after the commencement of that section.

1.12 Drug Court Act 1998 No 150

[1] Section 5A Definition of “eligible convicted offender”

Omit “18 months” from section 5A(1)(b)(i).

Insert instead “12 months”.

[2] Section 5A(1B)

Insert after section 5A(1A)—

- (1B) Subsection (1)(b)(i) does not prevent a person from being an eligible convicted offender if—
 - (a) on determining an appeal, a court reduces the unexpired non-parole period of the person’s sentence of imprisonment to a period of 12 months or less, and
 - (b) the person is already the subject of a compulsory drug treatment order as a consequence of a referral made to the Drug Court by the court that imposed the sentence subject to the appeal.

[3] Section 7A Persons accepted into program in relation to offence

Insert after section 7A(2)—

- (2A) When deciding whether to deal with a person under this section, the Drug Court may consider whether the person is able to be appropriately supervised.

[4] Section 18B Courts to refer eligible convicted offenders to Drug Court

Omit section 18B(6).

Insert instead—

- (6) In this section—
 - appeal* includes an application for annulment of sentence to the extent the application relates to a decision referred to in subsection (5).
 - confirm*, in relation to a sentence of imprisonment, includes a determination of a court on appeal to confirm a sentence of imprisonment but with a reduced unexpired non-parole period.

[5] Schedule 2 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Provision consequent on enactment of Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026

1 Application of amendments

The amendments to the Act, sections 5A and 18B made by the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026*, extend to the following occurrences before the commencement of the schedule—

- (a) a conviction or imposition of a sentence of imprisonment,
- (b) a determination of an appeal that reduced the unexpired non-parole period of a sentence of imprisonment.

1.13 Health Records and Information Privacy Act 2002 No 71

[1] Section 17B

Insert after section 17A—

17B Exemption in relation to BOCSAR

- (1) An organisation is not required to comply with HPP 10 and 11 in relation to any of the following activities if the purpose of the activity is reasonably necessary for the carrying out of BOCSAR's functions—
 - (a) the disclosure of health information to BOCSAR,
 - (b) the use of health information to facilitate the disclosure of the health information to BOCSAR,
Example— the interrogation, processing and preparation of health information before the health information is disclosed to BOCSAR
 - (c) the use of health information to facilitate the use of the health information by BOCSAR.
Example— another part of the Department of Communities and Justice giving health information to BOCSAR
- (2) BOCSAR is not required to comply with HPP 3, 4(2), 6–8, 10 and 11 in relation to any of the following activities if the purpose of the activity is reasonably necessary for the carrying out of BOCSAR's functions—
 - (a) the collection or use of health information,
 - (b) the disclosure of health information to another public sector agency.
- (3) For this section, BOCSAR's functions include the following—
 - (a) producing independent crime statistics, including by using data de-identification and data linkage,
 - (b) developing and maintaining crime statistics databases,
 - (c) undertaking research and providing analytical advice on crime and the criminal justice system, including by using data de-identification and data linkage,
 - (d) monitoring and forecasting trends in crime statistics,
 - (e) conducting research and evaluations relating to crime and the criminal justice system,
 - (f) publicly reporting crime statistics to inform public understanding, transparency and policy debate.
- (4) In this section—

BOCSAR means the group of persons referred to as the Bureau of Crime Statistics and Research employed in the Department of Communities and Justice.

crime statistics means statistics about crime and the criminal justice system, including statistics about—

- (a) community safety, and
- (b) the risk and susceptibility that persons will become victims or perpetrators of crime.

1.14 Judicial Officers Act 1986 No 100

[1] Section 3 Definitions

Insert in alphabetical order in section 3(1)—

industrial matters, for Part 3—see section 4A.

[2] Section 4A

Insert before section 5—

4A Definition

In this part—

industrial matters has the same meaning as in the *Industrial Relations Act 1996*.

[3] Section 6 Staff etc of the Commission

Omit section 6(1).

Insert instead—

- (1) The Commission may appoint a Chief Executive and other staff of the Commission to enable the Commission to exercise the Commission's functions.
- (1A) The Chief Executive and the staff of the Commission are taken to be employed by the Government in the service of the Crown, except as provided by subsection (1C).
- (1B) A person appointed as a member of staff of the Commission under this section—
 - (a) continues, subject to this section and the terms of the person's appointment, to be employed as a member of staff at the discretion of the Commission, and
 - (b) is, in the person's capacity as a member of staff, subject to the control and direction of the Commission.
- (1C) For proceedings relating to staff employed under this section held before a competent tribunal which has jurisdiction to deal with industrial matters, the Commission is taken to be the employer of the staff.

[4] Section 6(5)

Omit "employed".

Insert instead "appointed".

[5] Section 6, note

Insert at the end of the section—

Note— The *Government Sector Employment Act 2013*, section 5 excludes the application of that Act to the staff of the Commission.

[6] Section 6A

Insert after section 6—

6A Commission may enter into agreements

- (1) The Commission may enter into an agreement with an association or organisation representing a group or class of staff of the Commission for industrial matters.
- (2) An agreement binds all persons in the group or class affected by the agreement, and no person, whether or not a member of the association or organisation with which the agreement was entered into, has a right of appeal against the terms of the agreement.
- (3) An agreement under this section is not an enterprise agreement within the meaning of the *Industrial Relations Act 1996*.
- (4) Despite subsection (3), the Commission may, as the employer of the staff of the Commission, enter into an enterprise agreement under the *Industrial Relations Act 1996*.

[7] Schedule 5 Provisions relating to the rights of certain staff of the Commission

Omit “section 6 (1)” from clause 1, definition of *member of staff*.

Insert instead “section 6”.

[8] Schedule 5, clause 3(a)

Omit “being a member of staff, ceases to be employed by”.

Insert instead “ceases to be a member of staff of”.

[9] Schedule 6 Savings and transitional provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Provisions consequent on enactment of Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026

1 Definitions

In this part—

amendment Act means the *Justice Legislation Amendment (Miscellaneous) Act (No 2) 2026*.

commencement date means the date on which the amendment Act, Schedule 1.14 commenced.

2 Existing staff of Commission

- (1) A person who, immediately before the commencement date, was employed by the Commission under section 6 is on the commencement date taken to—
 - (a) be appointed, in accordance with section 6 as substituted by the amendment Act, as a member of staff of the Commission, and

- (b) hold the same staff position the person held immediately before the commencement date.
- (2) A person who, under subclause (1), is taken to be appointed and employed as a member of staff of the Commission—
 - (a) retains all rights to leave, including annual leave, extended leave and sick leave, accrued to the person as an employee of the Commission before the commencement date, and
 - (b) continues to be employed in accordance with a State industrial instrument or determination that applied to the person as an employee of the Commission, unless or until otherwise provided for under this Act or another Act or law.

1.15 Legal Profession Uniform Law Application Act 2014 No 16

[1] Section 21C

Insert after section 21B—

21C Supreme Court roll

The NSW Admission Board may, at the request of the Supreme Court, assist the Court in exercising the Court's functions under the *Legal Profession Uniform Law (NSW)*, section 22(1).

[2] Section 35A

Insert after section 35—

35A Investigation of unqualified legal practice

- (1) The Bar Council or Law Society Council may appoint a suitably qualified person to investigate a person who the Bar Council or Law Society Council reasonably suspects has contravened the *Legal Profession Uniform Law (NSW)*, section 10 or 11.
- (2) The *Legal Profession Uniform Law (NSW)*, Chapter 7 and Part 9.9, other than section 466(3), apply to an investigation under this section.
- (3) For subsection (2), a reference in the *Legal Profession Uniform Law (NSW)*—
 - (a) to a trust records investigation is taken to include a reference to an investigation under this section, and
 - (b) to the following persons is taken to include a reference to a person appointed under subsection (1)—
 - (i) an investigator in Chapter 7,
 - (ii) a relevant person in sections 462, 465 and 467.

[3] Section 148 Definitions

Omit the definition of *disciplinary action*, paragraphs (d) and (e).

Insert instead—

- (d) the making of an order by a court or tribunal, or by another person or body, for or following a finding of unsatisfactory professional conduct or professional misconduct by the lawyer, other than the following orders—
 - (i) an order cautioning the lawyer,
 - (ii) an order requiring an apology from the lawyer if—

- (A) no other orders were made in relation to the same disciplinary matter, or
- (B) the only other order made in relation to the same disciplinary matter was an order cautioning the lawyer,
- (c) the reprimanding of the lawyer by a person or body without a formal finding of unsatisfactory professional conduct or professional misconduct,

[4] Section 152 Register of Disciplinary Action

Insert after section 152(7)—

- (7A) The NSW Commissioner may, if the Commissioner considers it appropriate, remove from the register a disciplinary action taken against a lawyer if the lawyer has died.

1.16 Local Court Act 2007 No 93

[1] Schedule 1 Provisions relating to Judges

Omit “clause 10A” from clause 6.

Insert instead “clauses 10A and 11(5)”.

[2] Schedule 1, clause 11(5)

Insert after clause 11(4)—

- (5) A Deputy Chief Judge who is the holder of another judicial office of the State is entitled to be paid the higher of the following—
 - (a) remuneration as Deputy Chief Judge in accordance with the *Statutory and Other Offices Remuneration Act 1975*,
 - (b) remuneration as the holder of the other judicial office.

1.17 Mental Health and Cognitive Impairment Forensic Provisions Act 2020 No 12

[1] Section 3 Definitions

Insert in alphabetical order in section 3(1)—

correctional officer has the same meaning as in the *Crimes (Administration of Sentences) Act 1999*.

juvenile justice officer has the same meaning as in the *Children (Detention Centres) Act 1987*.

[2] Section 7 Interpretation

Omit section 7(1), definition of *juvenile justice officer*.

[3] Section 22 Orders may relate to transfer of defendants by certain persons

Omit section 22(4).

[4] Section 115 Transfer and transport of patients

Omit section 115(6) and (7).

[5] Section 115A

Insert after section 115—

115A Functions of persons transferring and transporting patients

- (1) A transferee patient may be taken to or from a mental health facility, correctional centre, detention centre or other place under section 115 by one or more of the following persons—
 - (a) a correctional officer,
 - (b) a juvenile justice officer,
 - (c) a person referred to in the *Mental Health Act 2007*, section 81(1),
 - (d) another person prescribed by the regulations.
- (2) A correctional officer taking a transferee patient to or from a place may, in relation to the transferee patient, exercise the functions the correctional officer has under the *Crimes (Administration of Sentences) Act 1999* and the regulations made under that Act in relation to an inmate.
- (3) A juvenile justice officer taking a transferee patient to or from a place may, in relation to the transferee patient, exercise the functions the juvenile justice officer has under the *Children (Detention Centres) Act 1987* and the regulations made under that Act in relation to a detainee.
- (4) If a transferee patient is being taken to or from a place by a person referred to in subsection (1)(c) or (d)—
 - (a) the person may, in relation to the transferee patient, exercise the functions referred to in the *Mental Health Act 2007*, section 81 in the same way the functions may be exercised in relation to a person being transported under that section, and
 - (b) the *Mental Health Act 2007*, section 81(3) applies in relation to the transferee patient in the same way it applies to a person being transported under that section.
- (5) In this section—

transferee patient means—

 - (a) a forensic patient, or
 - (b) a correctional patient, or
 - (c) a person subject to a transfer order under section 86.

[6] Section 156 Victims Register

Omit “victim.” from section 156(3)(b).

Insert instead—

- victim, or
- (c) the forensic patient was transferred to the State under the *Mental Health Act 2007*, Chapter 8, Part 2, Division 2.

[7] Section 156A Scheme Executive to notify victims of forensic patients or notifiable family members about Victims Register

Omit “Commissioner” wherever occurring.

Insert instead “Scheme Executive”.

1.18 NSW Trustee and Guardian Act 2009 No 49

[1] Section 128 Regulations

Omit “payable.” from section 128(2)(d).

Insert instead—

- payable,
- (e) notification requirements relating to orders and interim orders of the MHRT under Part 4.3, Division 1,
- (f) requirements for mental health facilities to notify the NSW Trustee of the movements of a managed person.

1.19 Powers of Attorney Act 2003 No 53

[1] Schedule 5 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Miscellaneous

1 Enduring power of attorney executed between 13 September 2013 and 20 February 2014

- (1) This clause applies to an instrument executed as an enduring power of attorney between—
 - (a) 13 September 2013, and
 - (b) 20 February 2014.
- (2) An instrument to which this clause applies is not invalid only because the witness certificate for the instrument does not include the statement required by section 19(1)(c)(iv).
- (3) In this clause—
witness certificate means the certificate that, under section 19(1)(c), is required to be endorsed on or annexed to an instrument creating an enduring power of attorney.

1.20 Privacy and Personal Information Protection Act 1998 No 133

[1] Section 3 Definitions

Insert in alphabetical order in section 3(1)—

Centre for Health Record Linkage means the group of persons referred to as the Centre for Health Record Linkage employed in the NSW Health Service.

[2] Section 17 Limits on use of personal information

Omit “person.” from section 17(c).

Insert instead—

- person, or
- (d) the use of the information for the other purpose is to enable information to be shared with and used by the Centre for Health Record Linkage.

[3] Section 18 Limits on disclosure of personal information

Omit “person.” from section 18(1)(c).

Insert instead—

- person, or
- (d) the disclosure of the information is—

- (i) for a purpose other than the purpose for which the information was collected, and
- (ii) to enable information to be shared with and used by the Centre for Health Record Linkage.

[4] Section 27E

Insert after section 27D—

27E Exemption relating to BOCSAR

- (1) A public sector agency is not required to comply with the information protection principles under sections 17–19 in relation to any of the following activities if the purpose of the activity is reasonably necessary for the carrying out of BOCSAR’s functions—
 - (a) the disclosure of personal information to BOCSAR,
 - (b) the use of personal information to facilitate the disclosure of the personal information to BOCSAR,
Example— the interrogation, processing and preparation of personal information before the personal information is disclosed to BOCSAR
 - (c) the use of personal information to facilitate the use of the personal information by BOCSAR.
Example— another part of the Department of Communities and Justice giving personal information to BOCSAR
- (2) BOCSAR is not required to comply with the information protection principles under sections 9, 13–15 and 17–19 in relation to any of the following activities if the purpose of the activity is reasonably necessary for the carrying out of BOCSAR’s functions—
 - (a) the collection or use of personal information,
 - (b) the disclosure of personal information to another public sector agency.
- (3) For this section, BOCSAR’s functions include the following—
 - (a) producing independent crime statistics, including by using data de-identification and data linkage,
 - (b) developing and maintaining crime statistics databases,
 - (c) undertaking research and providing analytical advice on crime and the criminal justice system, including by using data de-identification and data linkage,
 - (d) monitoring and forecasting trends in crime statistics,
 - (e) conducting research and evaluations relating to crime and the criminal justice system,
 - (f) publicly reporting crime statistics to inform public understanding, transparency and policy debate.
- (4) In this section—
BOCSAR means the group of persons referred to as the Bureau of Crime Statistics and Research employed in the Department of Communities and Justice.
crime statistics means statistics about crime and the criminal justice system, including statistics about—
 - (a) community safety, and

- (b) the risk and susceptibility that persons will become victims or perpetrators of crime.

1.21 Public Notaries Act 1997 No 98

[1] Section 7 Roll of public notaries

Insert after section 7(5)—

- (5A) A public notary must annually notify the Admission Board, in accordance with the rules, of—
 - (a) the particulars required under subsection (2) to be entered in the roll in relation to the public notary, and
 - (b) other information prescribed by the rules.

[2] Section 9 Rules for public notaries

Omit section 9(f).

Insert instead—

- (f) the annual notification by public notaries of—
 - (i) the particulars required to be entered in the roll, and
 - (ii) other information relating to the Board's functions,
- (fa) the fees payable to the Board in relation to the following—
 - (i) the examination of candidates for appointment as public notaries,
 - (ii) the appointment of public notaries,
 - (iii) the certificates of appointment of public notaries,
 - (iv) the annual notification by public notaries under section 7(5A),

1.22 Sheriff Act 2005 No 6

[1] Section 7E

Insert after section 7D—

7E Use of body-worn recording devices by Sheriff and sheriff's officers

- (1) A sheriff's officer is authorised to use a relevant device if—
 - (a) the officer uses the device in the exercise of the officer's functions under this Act or another Act or law, and
 - (b) the device is prominently attached to the officer's body or clothing, and
 - (c) at least one of the following circumstances applies—
 - (i) before using the device, the officer made a reasonable attempt to ensure the person likely to be recorded by the device was aware the device was capable of recording images or sound, or both,
 - (ii) in the officer's opinion, there is a significant risk of harm to the officer or another person,
 - (iii) the recording of images or sound, or both, by the device is inadvertent or unexpected.
- (2) A sheriff's officer may only use a relevant device in court premises under this section in accordance with a written agreement between the head of the court, however described, and the Sheriff.

- (3) A sheriff's officer does not commit an offence against the *Surveillance Devices Act 2007*, section 7 or 8 for use of a relevant device in accordance with this section.
- (4) In this section—
relevant device has the same meaning as in the *Surveillance Devices Act 2007*, section 8A.
sheriff's officer includes the Sheriff.

1.23 Terrorism (Police Powers) Act 2002 No 115

[1] Section 26ZS Sunset provision

Omit “2026” wherever occurring in section 26ZS(1) and (2).

Insert instead “2029”.

1.24 Victims Support Act 2013 No 37

[1] Section 19 Meaning of “act of violence”

Omit “self-manipulation” from section 19(8), definition of *sexual assault and domestic violence*, paragraph (c).

Insert instead “self-penetration”.

1.25 Young Offenders Act 1997 No 54

[1] Section 45 Preparation for conferences

Omit “, the person or court that” from section 45(2)(a).

Insert instead “or person who”.

[2] Section 54

Omit the section.

Insert instead—

54 Matters referred by courts

- (1) A conference convenor must, if requested by a court, give to the court an outcome plan relating to a matter referred for a conference by the court.
- (2) The court may—
 - (a) approve the plan, or
 - (b) not approve the plan.
- (3) If the court does not approve the plan, the court—
 - (a) must notify the conference convenor, and
 - (b) may continue the proceedings.

[3] Section 56 Satisfactory completion of outcome plans

Insert after section 56(2)—

- (3) For a matter referred for a conference by a court, the conference administrator must give the court the outcome plan when giving written notice under this section.

- (4) Subsection (3) does not apply if the conference convenor for the matter has given the court the outcome plan under section 54(1).